Constitution of India, Law & Engineering

AKTU Exam Answers · Topper answer-sheet style

> **How to use these notes:** in law and constitution answers, **Article numbers, Acts, years and case names earn marks**. Write them in every answer. Draw at least one flow chart or hierarchy diagram per 7-mark answer.

UNIT 1: CONSTITUTION & FUNDAMENTAL RIGHTS

Section A: 2-Mark Questions

Q1. Objectives of the Directive Principles of State Policy. *[2 Marks]*

Ans. The **DPSPs** are in **Part IV (Articles 36 to 51)**, borrowed from the **Irish** Constitution. They are **non-justiciable** (Article 37) but **fundamental in governance**. **Objectives:**

1. A **welfare state** with social and economic democracy (Articles 38, 39).
2. **Equal pay for equal work** (Article 39(d)) and **free legal aid** (Article 39A).
3. **Gandhian ideals:** panchayats (Article 40), prohibition (Article 47).
4. A **Uniform Civil Code** (Article 44), the **environment** (Article 48A), and **separation of the judiciary from the executive** (Article 50).

Q2. Constitutionalism and the unitary bias of the Constitution. *[2 Marks]*

Ans.

- **Constitutionalism** means **government power is limited by the constitution**, through the rule of law, separation of powers, judicial review and Fundamental Rights.
- **Unitary bias:** India is **quasi-federal** (K.C. Wheare), with a **strong Centre**:
  - A "Union of States" (Article 1).
  - Single citizenship.
  - Parliament can change state boundaries (Article 3).
  - Residuary powers lie with the Union (Article 248).
  - Emergency provisions.
  - Governors are appointed by the Centre.
  - All-India Services.

Q3. What are Fundamental Duties? *[2 Marks]*

Ans. Moral duties of citizens in **Part IV-A, Article 51A**.

- Added by the **42nd Amendment (1976)** on the recommendation of the **Swaran Singh Committee**. The idea comes from the **USSR**.

- There were 10; the **11th** (education for children aged 6 to 14) was added by the **86th Amendment (2002)**.
- Examples: respect the Constitution, the Flag and the Anthem; protect the environment; develop a scientific temper.
- They are **non-justiciable**.

Section B: 7-Mark Questions

Q4. Historical background and formation of the Constituent Assembly. *[7 Marks]*

Ans. The **Constituent Assembly** framed the Constitution of India. It was formed under the **Cabinet Mission Plan (1946)**, adopted the Constitution on **26 November 1949**, and the Constitution came into force on **26 January 1950**.



From British rule to the Constitution of India

Historical background:

1. **Regulating Act 1773:** the first control over the East India Company.
2. **GoI Act 1858:** power passed to the **British Crown**.
3. **Morley-Minto Reforms 1909:** separate electorates.
4. **Montagu-Chelmsford 1919: dyarchy** in the provinces.
5. **GoI Act 1935:** federation and provincial autonomy. **Most of our Constitution is based on it.**
6. The demand for a Constituent Assembly was raised by **M.N. Roy (1934)** and by the **INC (1935)**. It was accepted in the **August Offer (1940)**.

Formation:

- **389 members** (296 from British India, 93 from the princely states). They were **indirectly elected** by the provincial assemblies, about 1 seat per 10 lakh people.
- After Partition, the number fell to **299**.

Working:

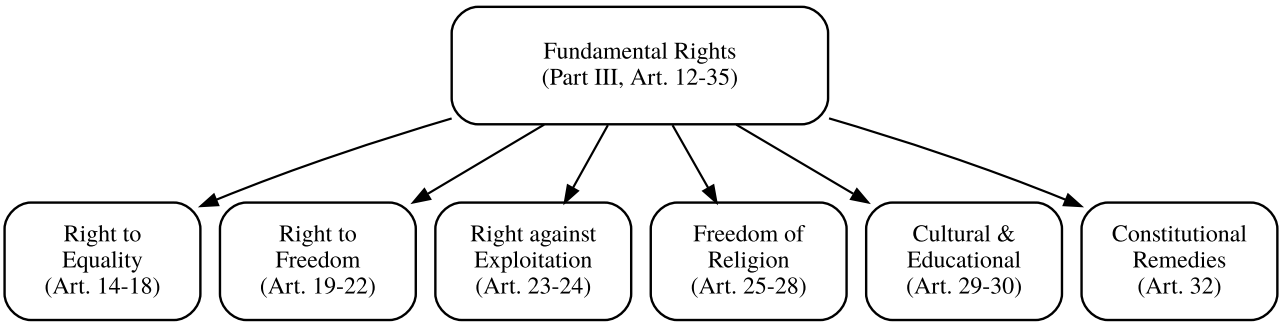
- **First meeting: 9 December 1946.** President: **Dr. Rajendra Prasad**.
- **Objectives Resolution:** moved by **Nehru** (13 December 1946); it became the Preamble.
- **Drafting Committee: Dr. B.R. Ambedkar** (29 August 1947). Adviser: **B.N. Rau**.
- It took **2 years, 11 months and 18 days**.
- The original Constitution had **395 Articles, 22 Parts and 8 Schedules**.

Criticism: not directly elected, dominated by the Congress, too lengthy.

Conclusion: the Assembly gave India the **world's longest written constitution**.

Q5. Explain Fundamental Rights and how they differ from other legal rights. *[7 Marks]*

Ans. Fundamental Rights are the **basic rights guaranteed in Part III (Articles 12 to 35)**, inspired by the **US Bill of Rights**. They are **justiciable**: a person can go **directly to the Supreme Court under Article 32**.



Classification of Fundamental Rights (Part III)

1. **Right to Equality (14 to 18):** equality before law, no discrimination, equal opportunity, **abolition of untouchability (17)**.
2. **Right to Freedom (19 to 22):**
   - **Article 19:** six freedoms.
   - **Article 21:** life and personal liberty.
   - **Article 21A:** education.
3. **Against Exploitation (23 and 24):** no forced labour; no child labour below 14.
4. **Freedom of Religion (25 to 28).**
5. **Cultural and Educational Rights (29 and 30):** for minorities.
6. **Constitutional Remedies (32):** the **five writs**: habeas corpus, mandamus, prohibition, certiorari, quo warranto. Ambedkar called it the "**heart and soul**" of the Constitution.

Key points:

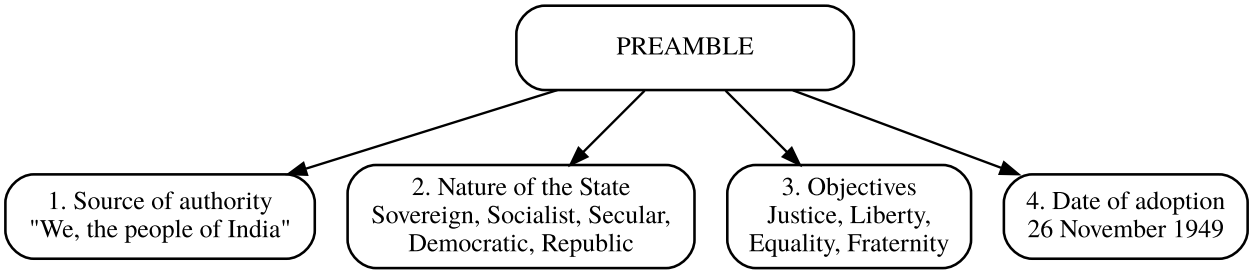
- The Right to Property was removed by the **44th Amendment**. It is now a legal right under **Article 300A**.
- **Articles 20 and 21 cannot be suspended**, even during an emergency.
- FRs can be amended, but **not the basic structure** (Kesavananda Bharati, 1973).

Fundamental Rights	Ordinary legal rights
Come from the **Constitution**	Come from **ordinary laws**
Direct remedy in the SC / HC (Articles 32, 226)	Through ordinary courts
Changed only by a **constitutional amendment**	Changed by an ordinary law
Mainly against the **State**	Mainly against individuals
Example: Article 21	Example: Article 300A (property)

Conclusion: Article 21 now includes the **right to privacy (Puttaswamy, 2017)**, a clean environment and livelihood.

Q6. Discuss the Preamble of the Indian Constitution. *[7 Marks]*

Ans. The **Preamble** is the **introduction** to the Constitution. It is based on Nehru's **Objectives Resolution**. It has been **amended only once**, by the **42nd Amendment (1976)**, which added **Socialist, Secular and Integrity**.



Four components of the Preamble

1. **"We, the people of India":** the **people are the source of authority**.
2. **Sovereign:** independent of any external power.
3. **Socialist:** democratic socialism, ending inequality.
4. **Secular:** no State religion; all religions treated equally.
5. **Democratic:** an elected government with adult franchise.
6. **Republic:** an **elected head of State**.
7. **Objectives:**
    - **Justice:** social, economic, political (from the **Russian Revolution**).
    - **Liberty:** of thought and expression.
    - **Equality:** of status and opportunity.
    - **Fraternity:** dignity and unity (from the **French Revolution**).

Is it a part of the Constitution?

- **Berubari (1960):** No.
- **Kesavananda Bharati (1973): Yes**. It can be amended, but not its basic structure.
- **LIC case (1995):** Yes.

> **Remember:** the Preamble is **non-justiciable**. N.A. Palkhivala called it the "**identity card**" of the Constitution.

Conclusion: the Preamble is the **soul of the Constitution** and guides its interpretation.

UNIT 2: UNION & STATE EXECUTIVE

Section A: 2-Mark Questions

Q1. Define Union Executive and State Executive. *[2 Marks]*

Ans.

- **Union Executive (Articles 52 to 78):** the **President** (nominal head), the Vice-President, the **PM and Council of Ministers** (real executive) and the Attorney General.
- **State Executive (Articles 153 to 167):** the **Governor** (nominal head), the **CM and Council of Ministers** (real executive) and the Advocate General.

Q2. Explain Judicial Review. *[2 Marks]*

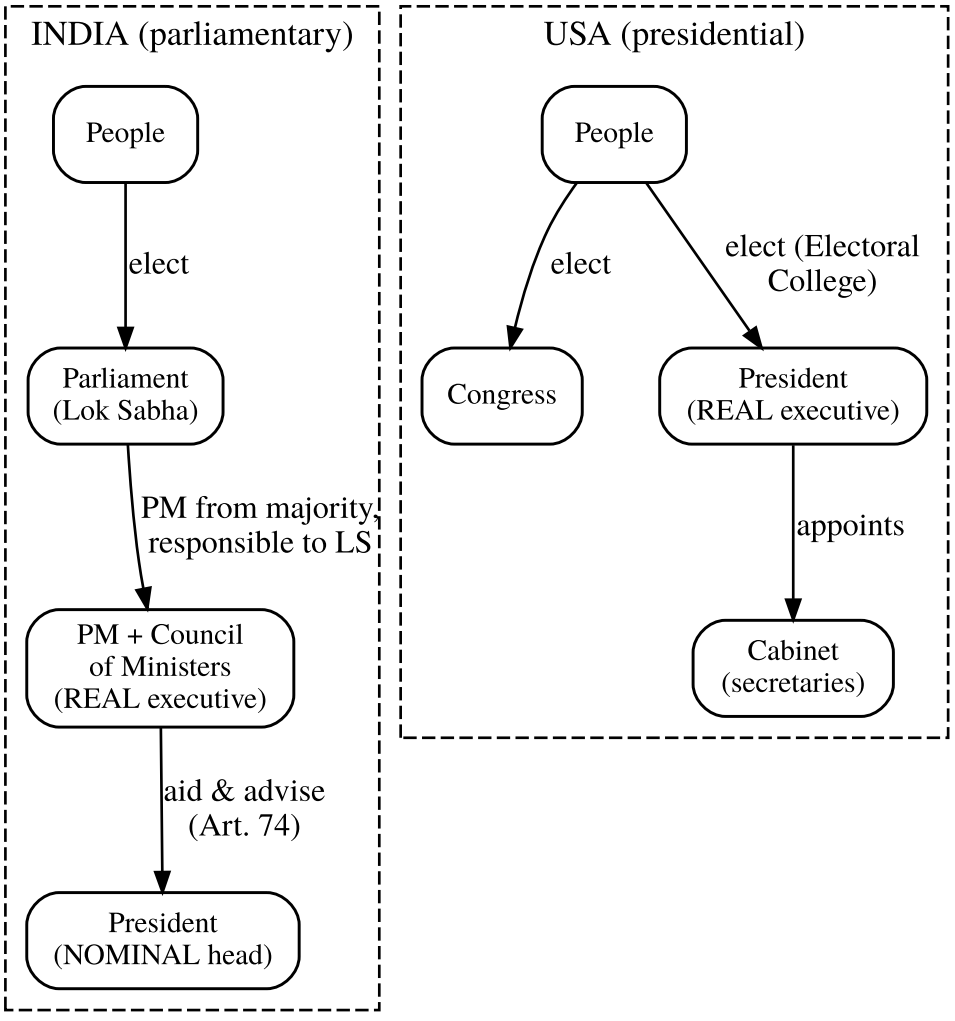
Ans. Judicial review is the **power of the courts to declare laws and executive actions void if they violate the Constitution**.

- **Basis:** Articles 13, 32, 226. **Origin:** Marbury v. Madison (USA, 1803).
- It is part of the **basic structure** (Kesavananda 1973, Minerva Mills 1980), so it cannot be removed.

Section B: 7-Mark Questions

Q3. Compare the powers of the President of India and the President of the USA. *[7 Marks]*

Ans. India has a **parliamentary system** in which the **President is the nominal head**. The USA has a **presidential system** in which the **President is the real executive**.



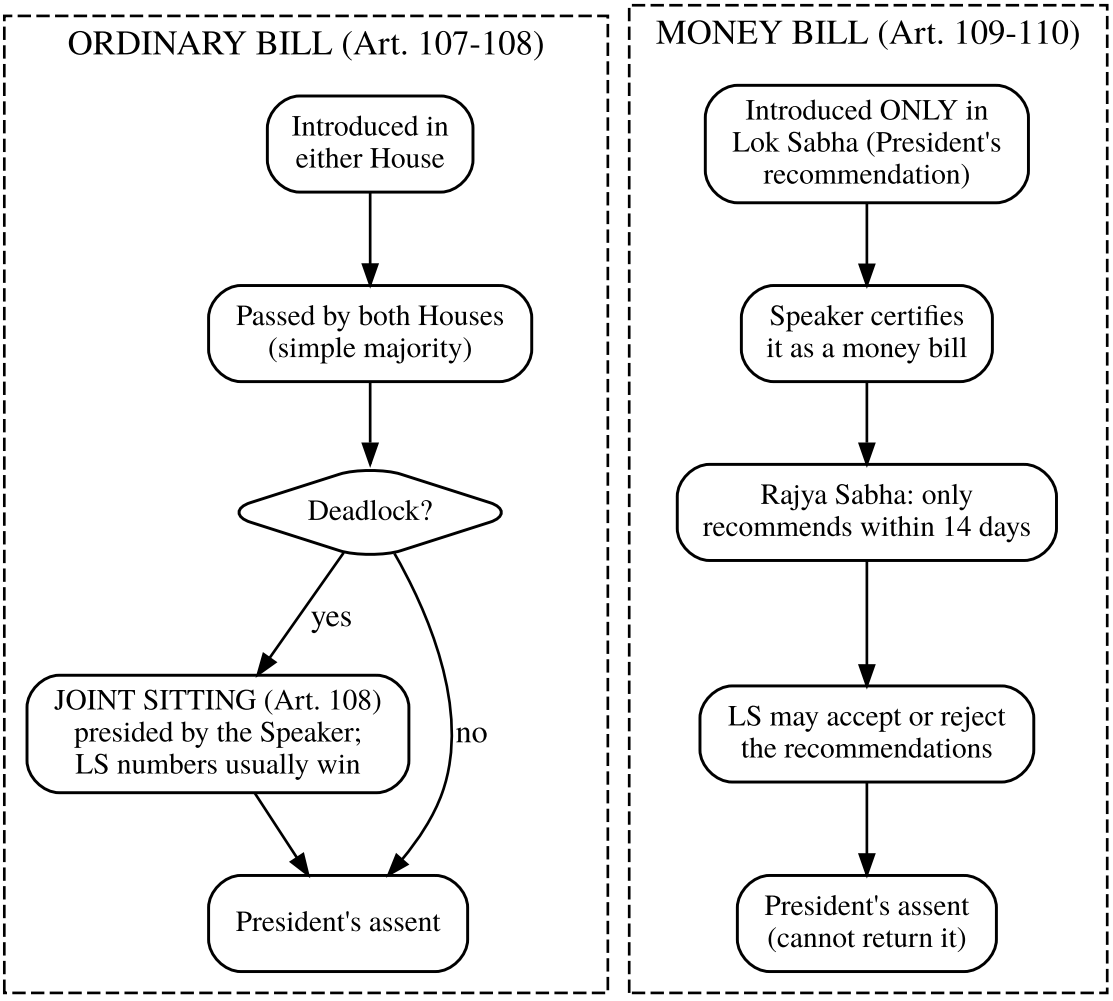
Parliamentary system (India) vs. presidential system (USA)

Basis	President of India	President of USA
Position	**Nominal** head	**Real** head of State and Government
Election	Indirect: elected MPs and MLAs (Articles 54, 55)	Electoral College (near-direct)
Term	5 years, no limit	4 years, **maximum 2 terms**
Advice of ministers	**Binding** (Article 74)	Not binding
Ministers	MPs	Not members of Congress
Dissolve the legislature	Lok Sabha (on the PM's advice)	Cannot dissolve Congress
Veto	Absolute, suspensive, pocket	Qualified (overridden by 2/3), pocket
Ordinance	**Yes** (Article 123)	No
Emergency	**Articles 352, 356, 360**	None
Removal	Impeachment for violation of the Constitution (Article 61), 2/3 of each House	House impeaches, **Senate (2/3)** convicts, for treason, bribery or high crimes

Conclusion: the Indian President "**reigns but does not rule**". The US President both reigns and rules.

Q4. Legislative and financial powers of the Lok Sabha. *[7 Marks]*

Ans. The **Lok Sabha** (Article 81) is the **directly elected** House, with a **maximum of 550 members** (543 elected seats now) and a term of 5 years. It has **more power than the Rajya Sabha**, especially over **money**.



Ordinary bill vs. money bill: role of the Lok Sabha

Legislative powers:

1. **Ordinary bills:** can be introduced in either House. A deadlock goes to a **joint sitting (Article 108)**, presided over by the **Speaker**. The Lok Sabha's numbers usually win.
2. **Amendments (Article 368):** equal power with the Rajya Sabha (no joint sitting).
3. Approves ordinances within **6 weeks**. Elects the Speaker, and takes part in the President's election.

Financial powers:

1. A **money bill (Article 110)** can be introduced **only in the Lok Sabha**.
    - The **Speaker certifies** it.
    - The Rajya Sabha can only **recommend within 14 days**.
2. **Budget (Article 112):** the **demands for grants are voted only by the Lok Sabha** (Article 113).
3. Passes the **Appropriation Bill (Article 114)** and the Finance Bill. Cut motions; vote on account.

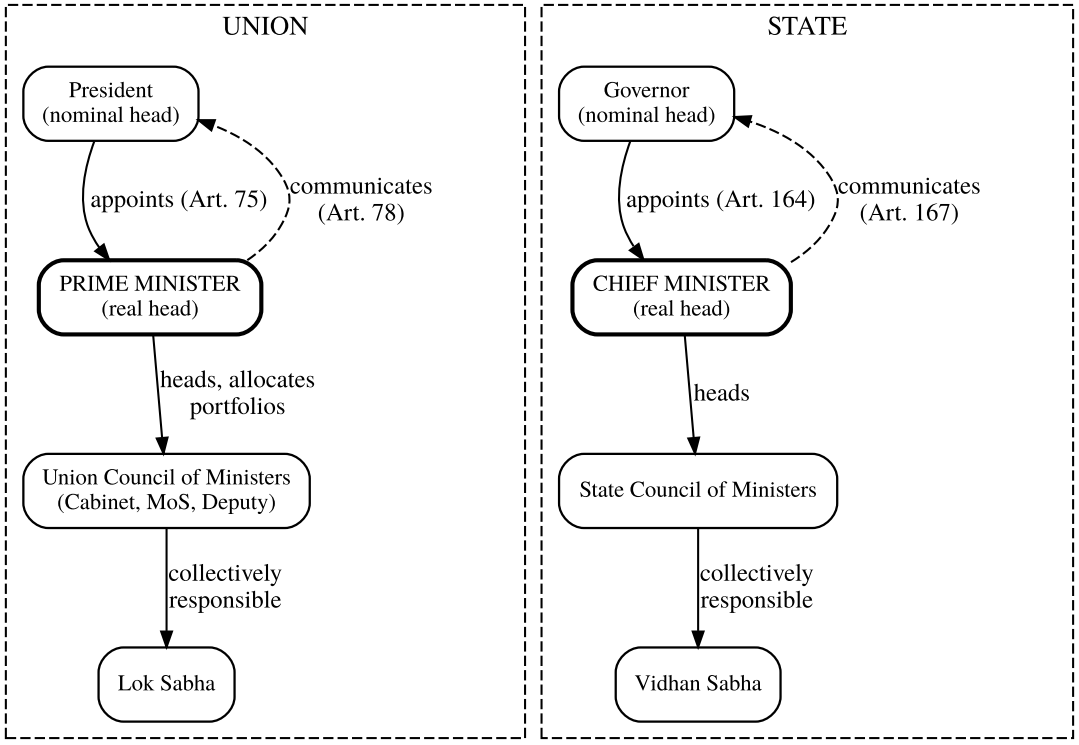
Control over the executive:

- The **Council of Ministers is collectively responsible to the Lok Sabha** (Article 75(3)).
- A **no-confidence motion** can be moved only in the Lok Sabha.

Power	Lok Sabha	Rajya Sabha
Money bill	**Introduces and passes**	Only recommends (14 days)
No-confidence motion	**Yes**	No
Joint sitting presided by	**Speaker**	-

Q5. Powers of the Prime Minister and the Chief Minister. *[7 Marks]*

Ans. The **PM** (Articles 74, 75, 78) and the **CM** (Articles 163, 164, 167) are the **real executive heads** at the Union and State levels.



Position of the PM and the CM in the executive

Powers of the PM:

1. **Council of Ministers:**
   - Recommends ministers and **allocates portfolios**.
   - Chairs the Cabinet.
   - **The PM's resignation dissolves the whole Council.**
2. **President:** is the **channel of communication (Article 78)**. Advises on key appointments.
3. **Parliament:** is the leader of the House. Advises **dissolution of the Lok Sabha**.
4. **Other: chairman of NITI Aayog**; leads foreign policy; crisis manager.

Powers of the CM: the same roles at the State level:

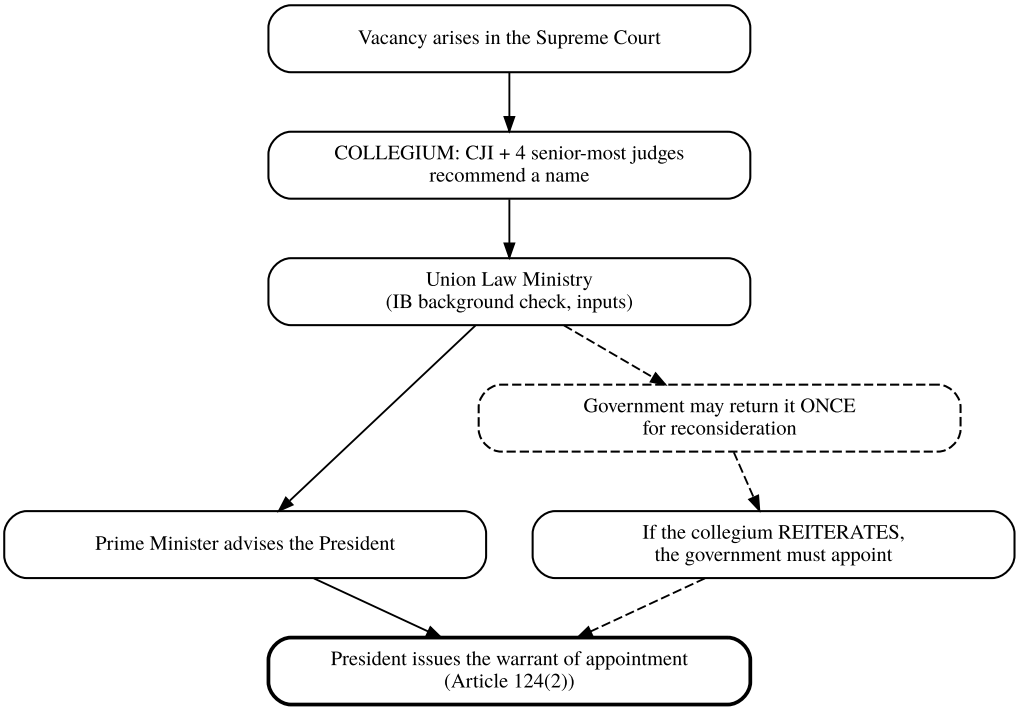
- Ministers and portfolios.
- **Channel to the Governor (Article 167).**
- Advises the dissolution of the Vidhan Sabha.

- Member of the NITI Aayog Governing Council and the Inter-State Council.

PM	CM
Appointed by the President (Article 75)	Appointed by the Governor (Article 164)
Responsible to the Lok Sabha	Responsible to the Vidhan Sabha
Article 78	Article 167

Q6. Independence of the Supreme Court and the appointment of judges. *[7 Marks]*

Ans. The **Supreme Court** (Articles 124 to 147) has **34 judges including the CJI**. It is the **guardian of the Constitution**. **Judicial independence is part of the basic structure.**



Appointment process under the collegium system (Memorandum of Procedure)

Appointment:

- **Article 124(2):** judges are appointed by the President after consultation.
- **Qualifications:** a High Court judge for 5 years, a High Court advocate for 10 years, or a distinguished jurist.
- **Judges cases:**
  - **First (1981):** the executive had primacy.
  - **Second (1993):** the **collegium system was created**.
  - **Third (1998):** the collegium became the **CJI + 4 senior-most judges**.
  - **NJAC (99th Amendment, 2014): struck down in 2015**.

Safeguards for independence:

1. **Tenure until 65.** Removal only by **special majority in both Houses** for proved misbehaviour or incapacity (Article 124(4)).
2. **Salaries charged on the Consolidated Fund**, and **not reducible** (except in a financial emergency).

3. **No practice after retirement** (Article 124(7)).
4. **Conduct not discussed** in Parliament (Article 121).
5. **Contempt power** (Article 129). Own staff (Article 146).
6. **Separation from the executive** (Article 50).

Criticism: the collegium is **opaque**; appointments are **delayed**; post-retirement posts may affect independence.

UNIT 3: LEGAL SYSTEM & WORKPLACE LAW

Section A: 2-Mark Questions

Q1. Key provisions of the RTI Act, 2005. *[2 Marks]*

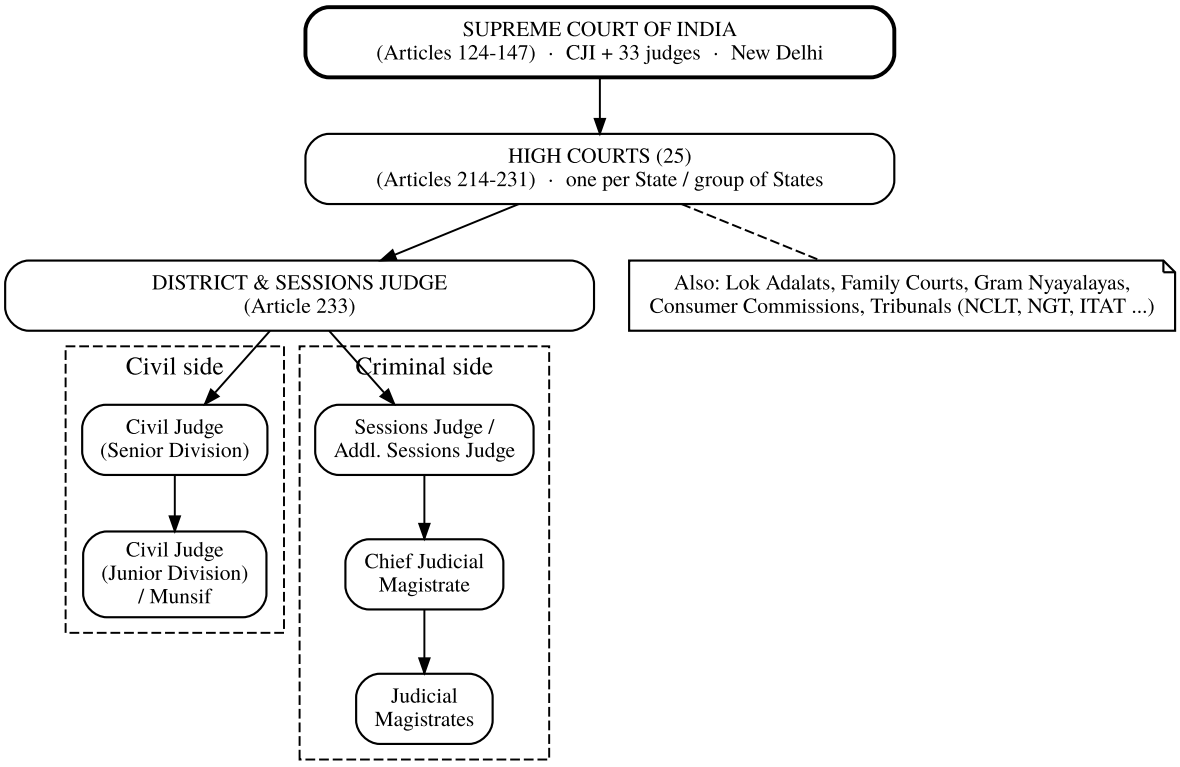
Ans. The RTI Act came into force on **12 October 2005**. Any **citizen** can ask a **public authority** for information.

1. **Section 4:** suo motu disclosure.
2. **Section 6:** apply to the **PIO** with a **Rs 10 fee** (no fee for BPL); **no reason needed**.
3. **Section 7:** reply within **30 days**, or **48 hours** for matters of life or liberty.
4. **Section 8:** exemptions (security, cabinet papers, personal information).
5. **Section 19:** first appeal, then a second appeal to the **Information Commission**.
6. **Section 20:** a **penalty of Rs 250 per day, up to Rs 25,000**.

Section B: 7-Mark Questions

Q2. Structure of the Indian court system: District Courts to Supreme Court. *[7 Marks]*

Ans. India has a **single, integrated, hierarchical judiciary**. Appeals go **upward**, and the **decisions of higher courts bind the lower courts** (Article 141).



Hierarchy of courts in India

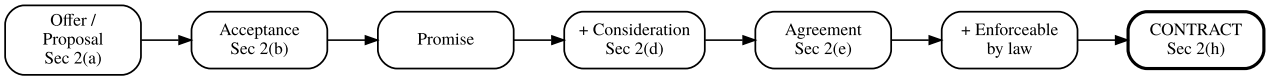
1. **Supreme Court:**
   - **Original jurisdiction (Article 131):** Centre vs. State disputes.
   - **Writs (Article 32).**
   - **Appeals (Articles 132 to 136**, including the SLP).
   - **Advisory (Article 143).**
   - **Court of record (Article 129).**
2. **High Courts (25):**
   - **Writs (Article 226)**, which are **wider** than Article 32 (they also cover legal rights).
   - **Supervision of the lower courts (Article 227).**
   - Judges retire at 62.
3. **District and Sessions Judge (Article 233):** the main court of the district, appointed by the **Governor with the High Court**. A death sentence needs **High Court confirmation**.
4. **Civil side:** Civil Judge (Senior Division), then Civil Judge (Junior Division) / Munsif.
5. **Criminal side:** Chief Judicial Magistrate, then Judicial Magistrates.
6. **Others: Lok Adalats** (no fee; the award is final), Family Courts, Gram Nyayalayas, Tribunals (NCLT, NGT), Consumer Commissions.

Supreme Court	High Court	District Court
Articles 124 to 147	Articles 214 to 231	Articles 233 to 237
Retire at 65	Retire at 62	State rules
Writs under Article 32	Writs under Article 226	No writs

Conclusion: e-Courts, NJDG and Lok Adalats are reducing the pendency of cases.

Q3. Contract law and the essentials of a valid contract. *[7 Marks]*

Ans. Contract law is governed by the **Indian Contract Act, 1872**. Under **Section 2(h)**, a **contract = an agreement enforceable by law**. "All contracts are agreements, but not all agreements are contracts."



Formation of a contract

Essentials (Section 10):

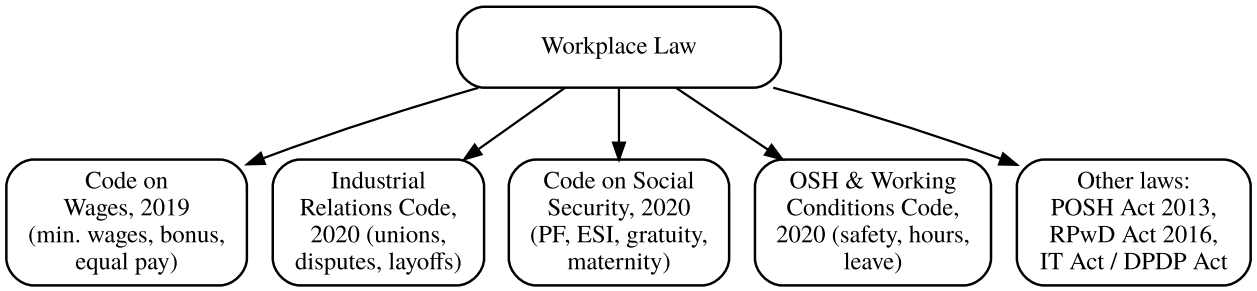
1. **Offer and acceptance:** the acceptance must be **absolute and communicated** (Sections 2(a), 2(b), 7).
2. **Intention to create legal relations:** social agreements do not count (*Balfour v. Balfour*).
3. **Lawful consideration:** "quid pro quo" (Sections 2(d), 25).
4. **Competent parties (Section 11):** a major, of sound mind, not disqualified. An agreement with a **minor is void** (*Mohori Bibee*, 1903).
5. **Free consent (Section 14):** no **coercion (15), undue influence (16), fraud (17), misrepresentation (18)** or mistake. Otherwise the contract is **voidable**.
6. **Lawful object (Section 23).**
7. **Not expressly void (Sections 24 to 30):** for example restraint of trade (27) or wagering (30).
8. **Certainty (Section 29)**, **possibility of performance (Section 56)**, and the **legal formalities** required by law.

Void	Voidable	Illegal
Not enforceable at all	Enforceable at one party's option	Forbidden by law
Example: with a minor	Example: consent by coercion	Example: smuggling

Remedies: damages (Section 73), specific performance, injunction.

Q4. Employee rights, employer responsibilities and workplace law. *[7 Marks]*

Ans. Workplace law governs the employer-employee relationship. India has **consolidated its labour laws into 4 Labour Codes (2019-2020)**, supported by Constitutional Articles 14 to 16, 21, 23, 24 and 39 to 43.



Framework of workplace law in India

Employee rights:

1. **Fair wages:** minimum wages, timely payment, **equal pay** (Code on Wages, 2019).
2. **A safe workplace**, fixed hours, leave (OSH Code, 2020).
3. **Social security:** PF, ESI, **gratuity (after 5 years)**, **maternity leave of 26 weeks**.
4. **No harassment:** under the **POSH Act 2013** (*Vishaka* guidelines), an **Internal Committee** is required if there are 10 or more employees.
5. **No discrimination.** The right to form **unions** (Article 19(1)(c)). Due process before termination. Data privacy (DPDP Act 2023).

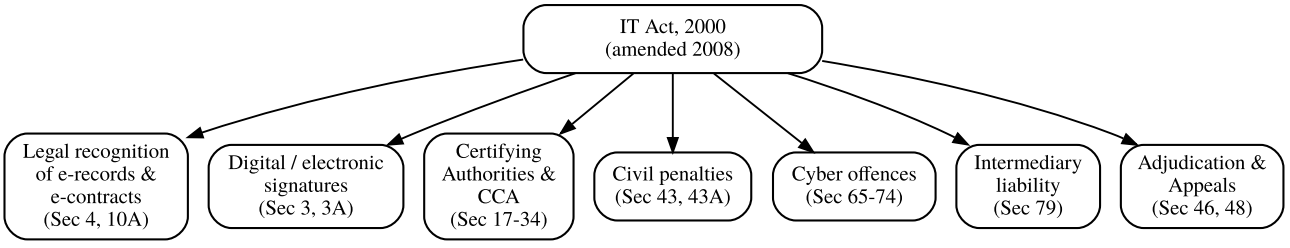
Employer responsibilities:

1. Issue an **appointment letter** with clear terms.
2. **Pay on time**, and deposit **PF, ESI and TDS**.
3. Provide a **safe workplace** and training.
4. Run a **POSH committee** and an equal-opportunity policy.
5. Maintain **records**; follow **due process** for discipline; protect employee data.

Area	Employee right	Employer duty
Wages	Minimum, equal pay	Pay on time
Safety	Safe workplace	Safety measures
Dignity	No harassment	POSH committee
Security	PF, ESI, gratuity	Deposit contributions

Q5. Explain the Information Technology Act, 2000. *[7 Marks]*

Ans. The **IT Act, 2000** is India's law on **e-commerce and cybercrime**. It is based on the **UNCITRAL Model Law (1996)**, came into force on 17 October 2000, and was **amended in 2008**.



Main components of the IT Act, 2000

Objectives: legal recognition of **e-records, e-contracts and digital signatures**; **e-governance**; punishment of **cybercrime**.

Key sections:

- **3:** digital signature. **3A:** electronic signature. **4:** e-records. **10A:** e-contracts.
- **Sections 17 to 34:** the **CCA** licenses the Certifying Authorities.
- **43:** compensation for damage to a computer. **43A:** failure to protect data.

Section	Offence	Punishment
65	Tampering with source code	3 years
66	Hacking (dishonest)	3 years / Rs 5 lakh
66C	**Identity theft**	3 years + Rs 1 lakh
66D	**Phishing / cheating by personation**	3 years + Rs 1 lakh
66E	Privacy violation	3 years
66F	**Cyber terrorism**	**Life imprisonment**
67	Obscene content	3 to 5 years

- **Section 66A** was **struck down** in *Shreya Singhal (2015)*.
- **69 / 69A:** interception and website blocking. **70B: CERT-In. 79:** intermediary safe harbour.

Conclusion: the IT Act supports e-filing, online banking and Aadhaar e-Sign. Data protection is now covered by the **DPDP Act 2023**.

UNIT 4: ELECTIONS, EMERGENCIES & AMENDMENTS

Section A: 2-Mark Questions

Q1. Ordinary Bill vs. Constitutional Amendment Bill. *[2 Marks]*

Ans.

Ordinary Bill	Amendment Bill
Articles 107, 108	**Article 368**
Simple majority	**Special majority** in each House
Joint sitting possible	**No joint sitting**
President may return it	President **must assent** (24th Amendment)
No State ratification	Half the States ratify federal provisions

Q2. When can a National Emergency be declared? Types of amendment under Article 368.

[2 Marks]

Ans.

- **National Emergency (Article 352):** for **war, external aggression or armed rebellion** ("armed rebellion" replaced "internal disturbance" through the 44th Amendment). It needs the Cabinet's

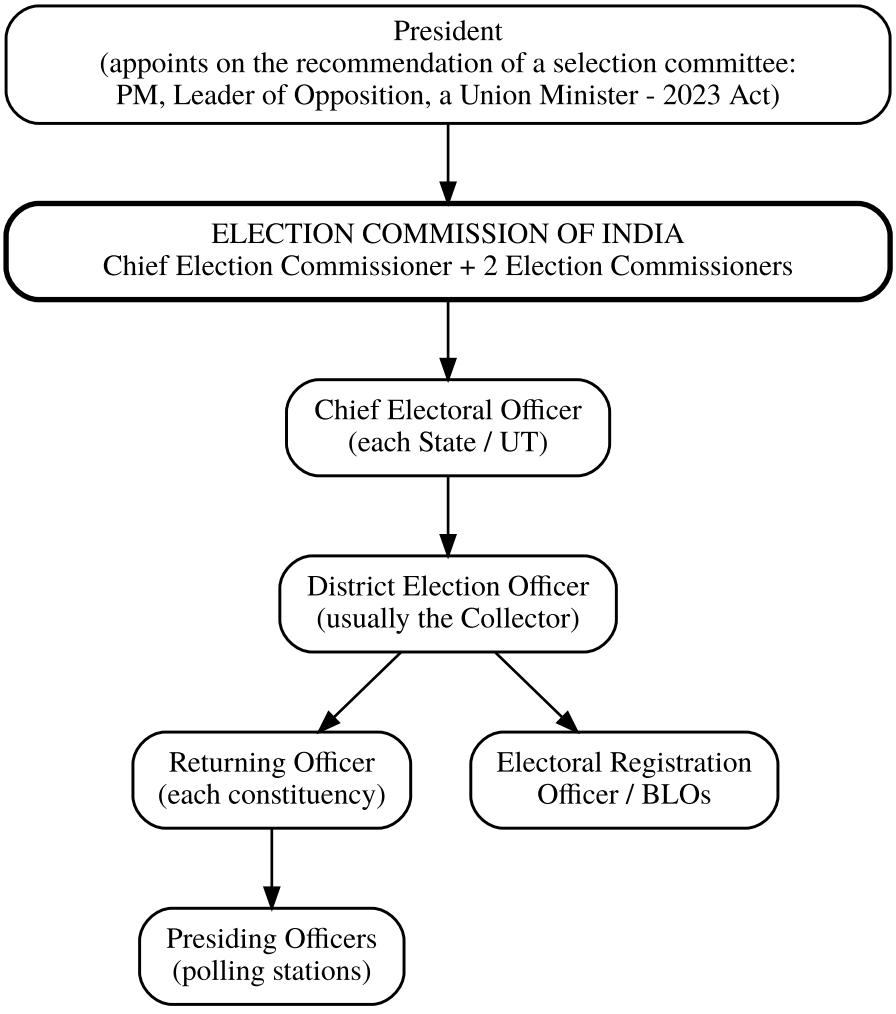
written advice and **approval within 1 month by special majority**. Declared in **1962, 1971 and 1975**.

- **Types of amendment:**
  1. **Simple majority** (Articles 2 to 4, citizenship).
  2. **Special majority** (FRs, DPSPs).
  3. **Special majority + ratification by half the States** (federal provisions, Article 368 itself).

Section B: 7-Mark Questions

Q3. Composition, powers and functions of the Election Commission of India. *[7 Marks]*

Ans. The **ECI** is a **permanent, independent constitutional body under Article 324**, set up on **25 January 1950** (National Voters' Day). It conducts elections to **Parliament, the State Legislatures, and the offices of the President and Vice-President**.



Structure of election machinery in India

Composition:

- **CEC + 2 Election Commissioners** (multi-member since 1993). Decisions by **majority**.
- **Appointment:** by the President, on a **selection committee's** recommendation (the PM, the Leader of the Opposition and a Union Minister), under the **2023 Act**.

- **Term: 6 years or until age 65**.
- **Removal:** the **CEC like a Supreme Court judge**; the ECs only on the CEC's recommendation.

Functions:

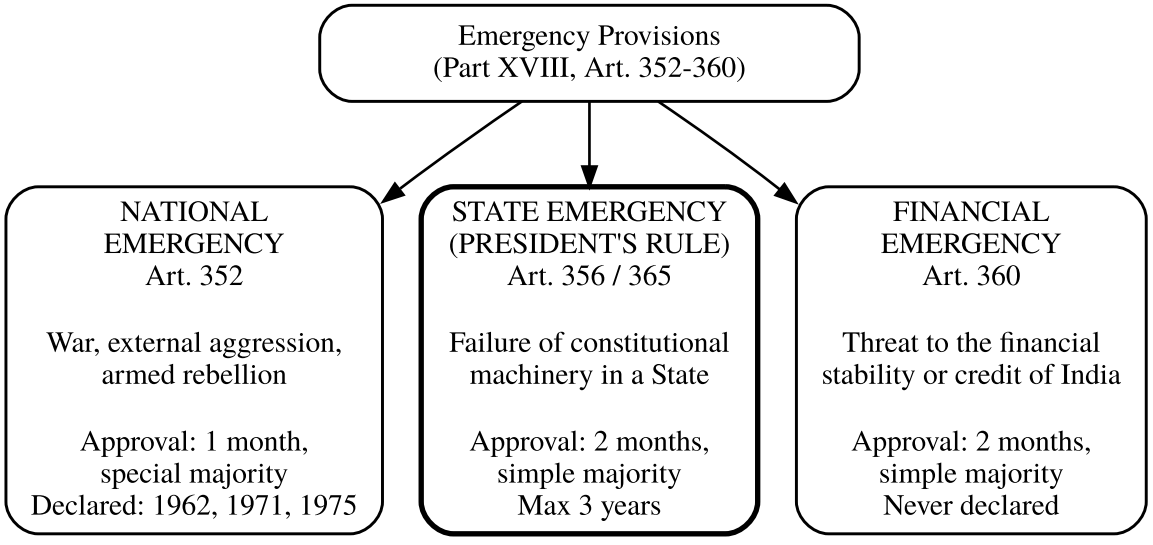
1. **Administrative:**
   - **Electoral rolls**, voter ID (EPIC), the **election schedule**.
   - **Recognising parties and allotting symbols**.
   - EVM / VVPAT.
   - Expenditure limits and observers.
2. **Regulatory:** enforces the **Model Code of Conduct**; rules on exit polls and paid news.
3. **Quasi-judicial:**
   - Settles party and symbol disputes.
   - Advises the **President (Article 103)** and the **Governor (Article 192)** on **disqualification**.
   - Cancels polls and orders re-polls.
4. **Advisory:** recommends electoral reforms.

Limitations: the MCC is not statutory; the ECI cannot deregister parties; the 2023 committee has a government majority.

Conclusion: the ECI ran the 2024 elections with about **97 crore voters**.

Q4. Three types of emergencies, focusing on President's Rule. *[7 Marks]*

Ans. The **emergency provisions** are in **Part XVIII (Articles 352 to 360)**, borrowed from the **Weimar Constitution of Germany**. During an emergency, the federation becomes **almost unitary**.



Three types of emergency

1. **National Emergency (Article 352):** war, external aggression or armed rebellion. Approved within 1 month by **special majority**. FRs can be suspended (**except Articles 20 and 21**).
2. **President's Rule (Articles 356 and 365):**

- **Grounds:** the President, on the **Governor's report or otherwise**, is satisfied that the **State government cannot be carried on according to the Constitution**. Article 365 covers a State that **does not follow Union directions**.
- **Cases:** a hung assembly; loss of majority with no alternative; a breakdown of the constitutional machinery.
- **Not valid grounds:** maladministration; no **floor test** held; political reasons.
- **Procedure:** approval within **2 months by simple majority**. **6 months at a time, maximum 3 years.** Beyond 1 year, a National Emergency and the **EC's certificate** are needed (44th Amendment).
- **Effect:** the President takes over the State executive; **Parliament makes the State's laws**; the High Court is unaffected.
- **S.R. Bommai (1994): judicial review is allowed**; the **floor test is the only test of majority**; secularism is part of the basic structure.
- First used in **Punjab (1951)**; used **more than 100 times** since.

3. **Financial Emergency (Article 360):** a threat to India's financial stability. **Salaries, including judges', can be reduced.** It has **never been declared**.

Basis	Article 352	Article 356	Article 360
Approval	1 month, special majority	2 months, simple majority	2 months, simple majority
Maximum duration	No limit	**3 years**	No limit
Used	3 times	100+ times	Never

Conclusion: the **44th Amendment and the Bommai judgment** now prevent misuse of these powers.

UNIT 5: BUSINESS ORGANIZATIONS & E-GOVERNANCE

Section A: 2-Mark Questions

Q1. What is a sole trader? Types of shares. *[2 Marks]*

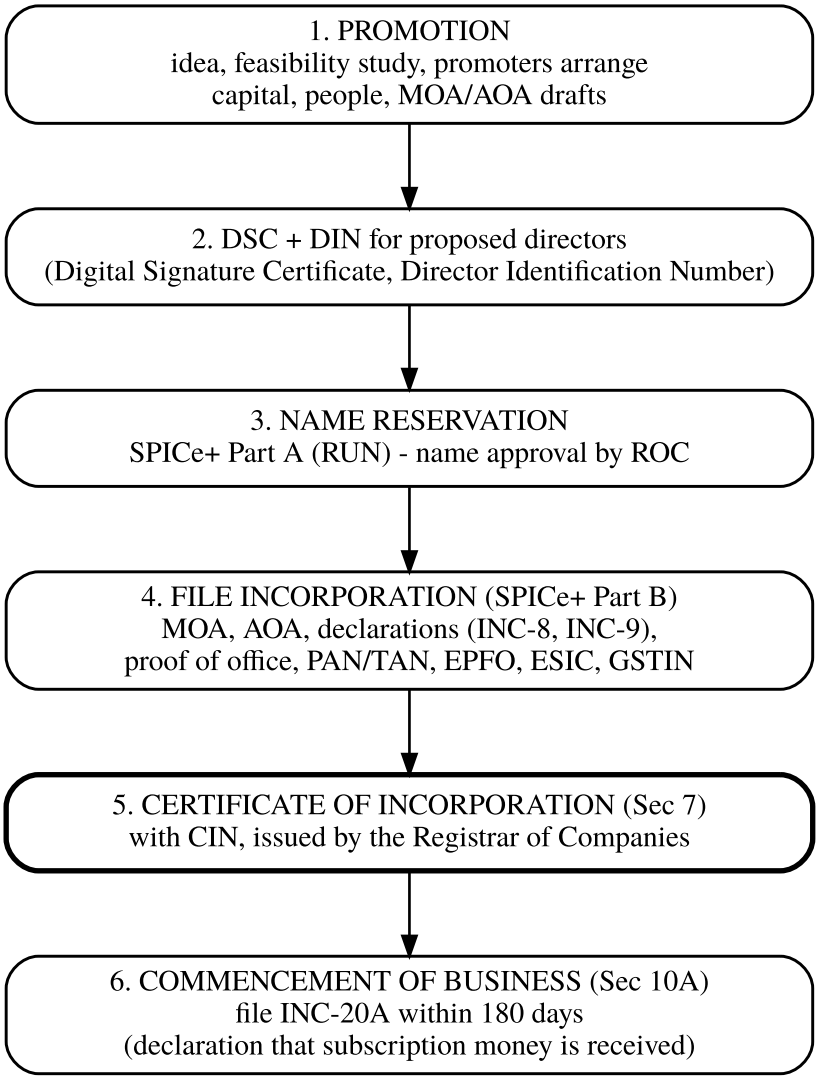
Ans.

- **Sole trader:** a business **owned and controlled by one person**, who takes all the profit and bears **unlimited liability**. It has **no separate legal entity** and is easy to form. Example: a kirana shop.
- **Shares (Section 43, Companies Act 2013):**
  - **Equity shares:** voting rights, dividend paid last, with or without DVR.
  - **Preference shares:** fixed dividend and priority. Types: cumulative, participating, convertible, **redeemable** (Section 55).
  - Also: **bonus (63), rights (62), sweat equity (54)** shares and ESOPs.

Section B: 7-Mark Questions

Q2. Formation of a company under the Companies Act. *[7 Marks]*

Ans. A **company** is an **artificial legal person** (Section 2(20), Companies Act 2013) with a **separate entity, limited liability and perpetual succession**. It is formed **online through SPICe+ on MCA21**.



Stages in the formation of a company

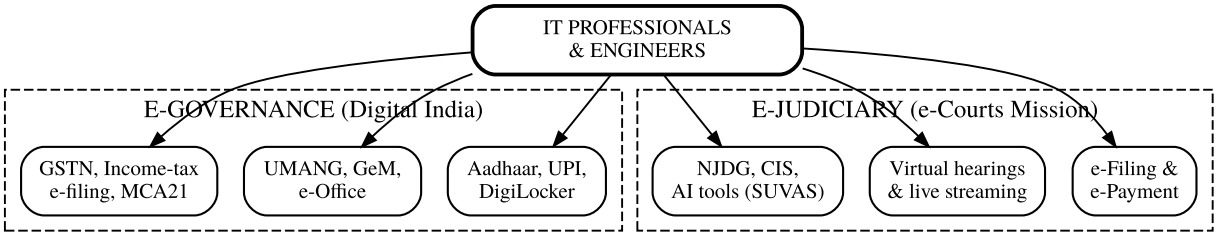
1. **Promotion:**
   - **Promoters** (Section 2(69)) do the feasibility study, arrange capital and choose the type.
   - **Private company:** 2 members, 2 directors. **Public company:** 7 members, 3 directors. **OPC:** 1 member.
2. **DSC and DIN** for the directors.
3. **Name reservation:** SPICe+ Part A (RUN).
4. **Documents:**
   - **MOA (Section 4):** the charter, with the name, registered office, **objects**, liability and capital clauses. The company **cannot act beyond it (ultra vires)**.
   - **AOA (Section 5):** the internal rules.

5. **File SPICe+ Part B** with INC-33 / 34 (e-MOA / e-AOA), INC-8 and INC-9, the office proof and the fees. PAN, TAN, GST, EPFO and ESIC are obtained in the same form.
6. **Certificate of Incorporation (Section 7)** with the **CIN**, issued by the **ROC**. From this date the company is a **legal person**.
7. **Commencement of business (Section 10A):** file **INC-20A within 180 days**.

Private	Public	OPC
2 to 200 members	7 or more members	1 member
2 directors	3 directors	1 director
“Pvt Ltd”	“Ltd”	“(OPC) Pvt Ltd”

Q3. Role of IT professionals and engineers in e-governance and the judiciary. *[7 Marks]*

Ans. E-governance uses ICT to deliver government services (G2C, G2B, G2G). **IT professionals design, build, secure and run** these systems, including the **e-Courts** of the judiciary.



IT professionals at the centre of e-governance and e-judiciary

In e-governance:

1. **Build portals and apps:** UMANG, DigiLocker, **GeM**, CoWIN, Passport Seva.
2. **Digital public infrastructure: Aadhaar, UPI, e-KYC, e-Sign** (India Stack).
3. **Cybersecurity:** PKI, encryption, audits, **CERT-In**, compliance with the **DPDP Act 2023**.
4. **Data analytics and AI** for policy, and fraud checks in DBT.
5. **Networks and cloud:** NIC, SWAN, State Data Centres, MeghRaj, BharatNet.
6. **Accessibility:** multilingual tools (Bhashini) and Common Service Centres.

In the judiciary:

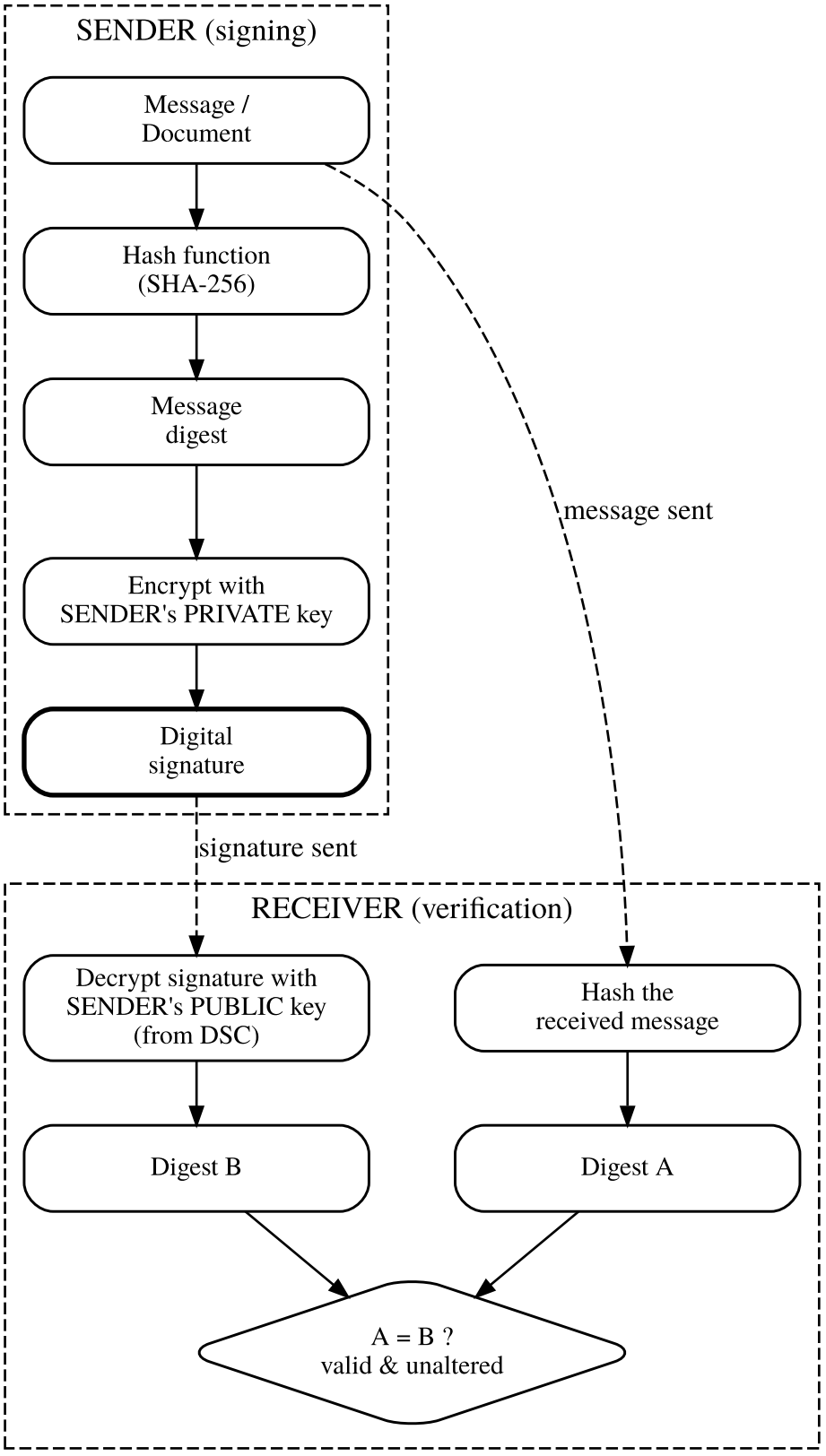
1. **e-Courts project:** CIS and the **NJDG** (case pendency data).
2. **e-Filing and e-payment**, **virtual hearings**, live streaming.
3. **AI: SUVAS** (translation), **SUPACE** (research help).
4. **ICJS** links police, courts and prisons. **Cyber forensics and electronic evidence** (Section 63 of the BSA 2023).

Ethics: privacy by design, secure code, no algorithmic bias.

Traditional	E-governance
Paper, offices	Online, 24 × 7
Slow, less transparent	Fast, audit trails

Q4. Digital Signature Certificates and cyber regulations. *[7 Marks]*

Ans. A **digital signature** authenticates a document using **asymmetric cryptography plus a hash** (Section 3 of the IT Act). A **DSC** binds a person's **identity to their public key**. It is issued by a **Certifying Authority** licensed by the **CCA**.



Digital signature process (sender signs with the private key, receiver verifies with the public key)

Working:

1. Hash the document to get a **digest**.
2. **Encrypt the digest with the private key.** This is the signature.
3. The receiver **decrypts it with the public key** (from the DSC) and hashes the document again.
4. **If the two digests match, the signature is valid.** This proves **authenticity, integrity and non-repudiation**.

DSC:

- **X.509** format: name, public key, validity, the CA's signature.
- **Class 3** (Class 2 was discontinued in 2021). Valid for **1 to 3 years**, on a **USB token**.
- **Uses:** MCA, GST, income tax, e-tender filings.
- **Section 5:** legally equal to a handwritten signature.

Cyber regulations:

1. **IT Act 2000 / 2008.**
2. **SPDI Rules 2011** (Section 43A).
3. **Intermediary Rules 2021.**
4. **CERT-In directions 2022:** report incidents **within 6 hours**.
5. **DPDP Act 2023:** consent, a Data Protection Board, penalties **up to Rs 250 crore**.
6. **BNS 2023 / BSA 2023** (criminal law and evidence).

Digital signature	Electronic signature
PKI with a DSC from a CA	Any reliable method (OTP, Aadhaar e-Sign)
Section 3	Section 3A
Detects any change to the document	Depends on the method

Conclusion: DSCs are **mandatory for MCA and GST filings**. Cyber laws keep India's digital ecosystem safe.